



December 4, 2023

**Wayne R. Rohde**

Direct Phone 202-463-2507

Direct Fax 202-640-5912

wrohde@cozen.com

**VIA EMAIL**

Dr. Kristen Monaco  
Director, Bureau of Trade Analysis  
Federal Maritime Commission  
800 North Capitol Street, NW  
Washington, DC 20573

RE: **URGENT** – Request for Special Permission on behalf of  
BBC Chartering Carriers GMBH & CO KG, Org No. 024785

Dear Dr. Monaco:

Pursuant to 46 C.F.R. §520.14, BBC Chartering Carrier GMBH & CO KG, Org. No. 024785 ("BBC") respectfully requests special permission to deviate from 46 C.F.R. §520.8(a) and to implement an Emergency Waterway Surcharge on less than thirty (30) days' notice. The reasons for this request are set forth below.

BBC, as relevant to this request, has operated a service between the U.S. Gulf Coast and the West Coast of South America via the Panama Canal. The normal sailing time for that service via the Canal was 11 to 12 days.

As the Commission is aware, drought conditions in Panama have resulted in a water shortage, and the Panama Canal Authority has severely limited the number of vessels that can transit the Canal. The Canal is giving priority to its largest customers, with the few transit slots that remain available being allocated via an auction system. The prices for the slots being auctioned as prohibitive for a carrier the size of BBC, which is not one of the Canal's larger customers. See Exhibit #1 hereto.

As a result of the Canal restrictions, BBC has been forced to re-route its U.S. Gulf-West Coast of South America service around the southern tip of South America via the Straits of Magellan. This adds approximately 16 days to the length of the voyage, which results in a dramatic increase in operating costs far in excess of the normal Panama Canal tolls. In short, BBC is faced with a sudden and unavoidable increase in costs which it is seeking to recover from its customers.

To that end, BBC has published a new Emergency Waterway Surcharge, to become effective in late December. See Exhibit #2 hereto. However, unless the effective date of this new surcharge is advanced, BBC will be unable to begin recovering the increased costs it is presently experiencing for almost a full month.

Accordingly, BBC respectfully requests that it be granted special permission to advance the effective date of the Emergency Waterway Surcharge published in Rule 010-Q of its tariff BBHY-002 to the earliest possible date. The Emergency Waterway Surcharge will replace BBC's existing Panama Canal-related surcharges, which will no longer be applied once the Emergency Waterway Surcharge becomes effective.

The filing fee for this request has been paid electronically. The Pay.gov tracking ID is 279TEOT1 and the Agency Tracking ID is 76568665408.

Thank you in advance for your favorable consideration of this request. Should you have any questions or require any further information, please do not hesitate to contact the undersigned.

Sincerely,

COZEN O'CONNOR

A handwritten signature in black ink, appearing to read "Wayne Rohde", written in a cursive style.

By: Wayne Rohde

WRR

Enclosures